

CONSENT TO MARRIAGE OF A PERSON UNDERAGE

Municipality of _____
Province of _____

I, _____, resident of _____,
[Father / Mother / Guardian] of _____.

A resident of _____, single and less than (twenty-one) years of age,
being duly sworn, do hereby depose and say that I freely consent to _____ marrying
_____, resident of _____, and that I
know of no legal impediment to such marriage.

Signature of Father, Mother, or Guardian

WITNESSES *(Not necessary if this affidavit is subscribed before the Local Civil Registrar concerned.)*

Witness

Witness

SUBSCRIBED AND SWORN to before me this _____ day of _____, 20____ at
_____, Philippines.

Signature of Person Administering Oath
Title / Position: _____

INSTRUCTIONS

In case either or both of the contracting parties, being single, or less than twenty-one years of age, they shall exhibit to the LCR concerned the consent to their marriage of their father, mother, guardian, or person having legal charge of them, in the order mentioned. Such consent shall be in writing under oath taken with the appearance of the interested parties before the LCR or in the form of an affidavit made in the presence of two witnesses and subscribed before any official authorized by law to administer oaths. (Rep. Act 236 Art. 61).

For the purpose of the Marriage Law, by guardian is meant a guardian legally appointed by will or by a competent court for the person, or both the person and estate, of a minor. By person having legal charge is meant a person actually in lawful charge of a minor who has no father or legal guardian.